

BEFORE THE IOWA BOARD OF SOCIAL WORK EXAMINERS

IN THE MATTER OF:	)	DIA NO. 07DPHSW002
	)	
	)	FINDINGS OF FACT,
CRAIG ALAN GROEHN	)	CONCLUSIONS OF LAW,
	)	DECISION AND ORDER

On November 5, 2001 and again on February 13, 2006, the Iowa Board of Social Work Examiners (Board) and Craig Alan Groehn (Respondent) entered into a Settlement Agreement and Final Order that indefinitely suspended Respondent's license as a licensed independent social worker (LISW). On March 26, 2007, Respondent filed an Application for Reinstatement. The Board issued a Notice of Hearing on April 13, 2007.

The hearing was held on August 13, 2007 at 9:30 a.m. in the fifth floor conference room, Lucas State Office Building, Des Moines, Iowa. The following members of the Board presided at the hearing: Joyce Westphal, LISW, Chairperson; Katinka Keith, LISW; David Stout, LMSW; and Monsignor W. Robert Schmidt, public member. Administrative Law Judge Margaret LaMarche assisted the Board in conducting the hearing. Respondent Craig Alan Groehn was represented by attorney Denise M. Hill. Assistant Attorney General Heather Adams represented the state. A certified court reporter recorded the hearing. The hearing was closed to the public, pursuant to Iowa Code section 272C.6(1)(2007) and 645 IAC 11.19(10).

Following the hearing, the Board convened in closed executive session to deliberate their decision, pursuant to Iowa Code section 21.5(1)(f)(2007). The administrative law judge was instructed to prepare Findings of Fact, Conclusions of Law, Decision and Order, in accordance with the Board's deliberations.

THE RECORD

The record includes the testimony of Respondent, State Exhibits 1-9, and Respondent Exhibits A-F (See exhibit indexes for description)

FINDINGS OF FACT

1. On March 13, 1992, the Board issued Respondent license number 00800 to practice as a licensed independent social worker in the state of Iowa. (State Exhibits 3, 6)

2. On September 27, 2001, the Board filed a Statement of Charges alleging that Respondent violated Board statutes and rules by:

- developing and maintaining multiple dual relationships with two patients;
- violating patient confidentiality;
- exerting undue influence on a client for financial gain;
- utilizing inappropriate and unethical therapeutic techniques.

(State Exhibit 3)

3. On November 5, 2001, Respondent and the Board entered into a Settlement Agreement and Final Order in resolution of the Statement of Charges. Respondent's social work license was indefinitely suspended. Prior to reinstatement of his license, Respondent was required to submit to a comprehensive, multi-disciplinary evaluation by Gary Schoener, M.Ed., at his own expense.

Mr. Schoener was required to provide a written evaluation report, to make a recommendation whether Respondent is safe to return to the practice of social work, and to make recommendations concerning any restrictions or conditions of licensure. Mr. Schoener was also required to provide an initial treatment plan, subject to Board approval. Respondent was required to comply with all of Mr. Schoener's treatment recommendations and to sign a release allowing the Board to freely communicate with all individuals responsible for his evaluation and treatment.

Finally, Respondent agreed that his license would not be reinstated except upon proof that he had complied with the terms of the Settlement Agreement, that the basis for the suspension no longer exists, and that it would be in the public interest to reinstate his license. Respondent agreed that following a hearing on reinstatement, the Board could enter a further period

of suspension, could place his license on probation for a period of time subject to terms, conditions and restrictions, or could impose other appropriate discipline. (State Exhibit 4)

4. Gary Schoener, M.Eq., evaluated Respondent as required by the Settlement Agreement and Final Order. The comprehensive evaluation was initiated on October 19, 2002 and completed on January 13, 2003. Gary Schoener issued a written evaluation report on January 29, 2003. Mr. Schoener did not find evidence of any significant psychological disorder or sociopathic factors and concluded that the violations may have been caused, in part, by Respondent's naiveté about people and risk management, his carelessness with professional boundaries, and Respondent's own need to be needed and to overextend himself with clients, in part due to financial pressures and his difficult marital relationship. Mr. Schoener concluded that Respondent could be rehabilitated without extensive intervention and made the following recommendations:

- Respondent needs to see a therapist for at least the first six months of practice and should start therapy at least three months prior to his re-entry. The frequency of the visits should be based on the therapist's recommendation following initial assessment;
- Upon return to practice, Respondent should have a minimum of six months of clinical supervision. The supervision should be general in nature, with a focus on the establishment of a presenting complaint and general diagnosis, a treatment plan, and the provision of service.

(Testimony of Respondent; State Exhibit 5)

5. On February 14, 2005, the Board filed a second Statement of Charges against Respondent, containing factual and legal allegations very similar to those charged in the first Statement of Charges. The factual allegations underlying the second Statement of Charges occurred during substantially the same time period as the factual allegations underlying the first Statement of Charges. Respondent's social work license had not been reinstated following the first Settlement Agreement. (State Exhibit 6)

6. On February 13, 2006, Respondent and the Board entered into a second Settlement Agreement and Final Order in resolution of

the second Statement of Charges. The second Settlement Agreement provided that Respondent's social work license would continue to be indefinitely suspended, with no possibility of reinstatement for six (6) months from the date of the order. Prior to reinstatement of his license, Respondent was required to submit to an additional evaluation by Gary Schoener at his own expense. Mr. Schoener was required to provide a written evaluation report with his opinions as to whether the recommendations made in the January 2003 evaluation report should be modified in light of the February 2005 Statement of Charges and whether it is appropriate for the Board to reinstate Respondent's social work license and if so, under what restrictions or conditions. (State Exhibit 7)

7. Respondent submitted to the re-evaluation by Gary Schoener on August 18, 2006, but due to a backlog of work, Mr. Schoener did not submit his written report to the Board until January 17, 2007. Mr. Schoener conducted follow-up telephone interviews with Respondent on December 22 and December 27, 2006, prior to preparing the written report. In addition Respondent submitted to objective psychological testing preceding the re-evaluation.

Based on the re-evaluation, Mr. Schoener did not substantially change his recommendations for Respondent's re-entry into the social work profession, except to add a specific recommendation that Respondent should avoid becoming the primary individual therapist for any client with Dissociative Identity Disorder (DID). It was Mr. Schoener's professional opinion that if Respondent met the conditions outlined in the two evaluation reports, then he could safely return to the practice of social work without risk to the public. (State Exhibit 8)

8. Richard L. Joens, LISW, has been providing weekly individual therapy to Respondent since July 2005. Mr. Joens reports that he has reviewed Gary Schoener's report and that the therapy sessions have addressed the issues raised by the complaints brought against Respondent as a therapist. Mr. Joens is willing to continue to provide therapy to Respondent and to provide reports to the Board. In Mr. Joens' opinion, Respondent can reasonably and appropriately practice social work at this time. (Respondent Exhibit D)

9. Several mental health professionals who are familiar with Respondent's work as a licensed independent social worker have

provided letters of recommendation/support for Respondent's application for license reinstatement. (Respondent Exhibit E)

10. Respondent has attended at least three continuing education courses since May 2005, including the following courses in 2007: "Ethical Responsibility in Your Workplace" (3 hours, August 2007) and the "Iowa NASW Annual Symposium-Advancing Social Work Practice: Fresh Perspectives in Challenging Times" (11.25 hours, April 2007).

11. Respondent has not practiced social work in any capacity since November 2001. He is currently employed by a vending machine business at Iowa State University. (Testimony of Respondent)

CONCLUSIONS OF LAW

645 IAC 11.31 provides, in relevant part:

645-11.31(272C) Reinstatement.

11.31(1) Any person whose license to practice has been...suspended may apply to the board for reinstatement in accordance with the terms and conditions of the order of ... suspension,...

11.31(2) If the order of ... suspension did not establish terms and conditions upon which reinstatement might occur, or if the license was voluntarily surrendered, an initial application may not be made until one year has elapsed from the date of the order or the date of the voluntary surrender.

...

11.31(4) An application for reinstatement shall allege facts which, if established, will be sufficient to enable the board to determine that the basis for the ...suspension of the respondent's license no longer exists and that it will be in the public interest for the license to be reinstated. The burden of proof to establish such facts shall be on the respondent.

11.31(5) An order denying or granting reinstatement shall be based upon a decision which incorporates findings of fact and conclusions of law. The order shall be published as provided for in this chapter.

Respondent's social work license has now been suspended for more than five years. Respondent has completed the multi-disciplinary evaluation and the re-evaluation required by the two Settlement Agreements, and the evaluator has submitted two written reports recommending Respondent's reinstatement, subject to conditions. Respondent has more than complied with the evaluator's recommendation, in that he has been in weekly therapy since July 2005. Respondent's therapist supports his request for reinstatement. Respondent has expressed his willingness to comply with the recommendations for ongoing therapy and clinical supervision if he is allowed to return to social work practice. Respondent has stated that he has no intention of treating clients with Dissociative Identity Disorder (DID). Respondent has expressed a commitment to use only those treatment modalities that are research based and have proven efficacy.

The issues before the Board are whether the basis for the suspension of Respondent's license no longer exists and whether reinstatement is in the public interest. In order to reinstate, the Board must be satisfied that the public will be protected and that Respondent is willing and able to comply with all of the statutes and rules governing practice as a licensed independent social worker, including all ethical obligations.

The preponderance of the evidence established that Respondent complied with the terms of both Settlement Agreements and further established that it is in the public interest for his social work license to be reinstated at this time. Given the length of time that he has been out of practice, Respondent will be required to verify that he is currently competent to practice social work by completing required continuing education and by taking and passing the clinical level examination. 645 IAC 280.15; 280.14(3)"b." When Respondent's license is reactivated, it will immediately be placed on probation, subject to terms and conditions consistent with the recommendations made by Gary Schoener.

DECISION AND ORDER

IT IS THEREFORE ORDERED that the application for reinstatement of license number 00800 to practice social work at the independent level, filed by Craig Alan Groehn, is hereby GRANTED. Pursuant to 645 IAC 280.15, Respondent is now eligible

to reactivate his license. Since he has been out of practice for more than five (5) years, Respondent is required to comply with all of the requirements set out at 645 IAC 280.14(3)"b," including verification of his completion of 27 hours of continuing education within two years of application for reactivation and verification that he has taken and passed the ASWB clinical level examination for licensure at the independent level immediately prior to reactivation.

Upon completion of all of the requirements set out in 645 IAC 280.14(3) and payment of all applicable licensure fees, license number 00800 shall be reactivated and immediately placed on PROBATION for an INDEFINITE PERIOD, subject to the following terms and conditions:

1. Respondent shall only practice in a group or agency setting that can provide adequate clinical supervision or support. Any work practice setting shall be approved by the Board.

2. Respondent shall obtain ongoing supervision from a Board-approved licensed independent social worker (LISW). Respondent's proposed supervisor shall provide the Board with written verification that he/she has been provided with a copy of this Decision and Order of the Board and is familiar with its provisions. Respondent's supervisor shall be approved by the Board.

- a. Within thirty (30) days of accepting a social work position, Respondent and his Board-approved supervisor shall develop a written plan of supervision and submit it to the Board for its approval. The plan must include at least one hour of weekly supervision with a focus on the establishment of a presenting complaint and general diagnosis, a treatment plan, and the provision of service. Respondent is responsible for any costs or fees associated with this supervision.

- b. Respondent's Board-approved supervisor shall provide a written report to the Board every three (3) months. The report shall describe Respondent's social work practice and his compliance with the statutes and rules governing the practice of social work, including

all ethical obligations. In addition to the written report every three months, Respondent's supervisor shall promptly report any violations or ethical concerns to the Board.

c. Respondent shall execute any and all necessary releases to allow a free exchange of information between his supervisor and the Board.

3. Respondent is prohibited from treating any Dissociative Identity Disorder (DID) clients, unless he does so as part of a structured team.

4. Respondent shall continue therapy with a Board-approved therapist at the frequency recommended by the therapist. Respondent's therapist shall provide the Board with written verification that he/she has been provided with a copy of this Decision and Order of the Board and is familiar with its provisions. Respondent's Board-approved therapist shall provide a written report to the Board every three (3) months. The report shall include a verification of Respondent's attendance and a general statement concerning his progress in therapy, unless the Board requests more specific information. Respondent shall execute any and all necessary releases to allow a free exchange of information between his therapist and the Board.

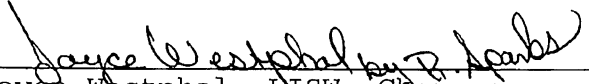
IT IS FURTHER ORDERED that Respondent's probation shall continue until such time as the Board terminates it. Respondent will be asked to personally appear before the Board one (1) year following the reactivation of his license. At that time the Board will consider whether it is appropriate to release Respondent from the terms of probation.

IT IS FURTHER ORDERED that if Respondent violates any provision of this Decision and Order, the Board will hold a hearing pursuant to Iowa Code section 272C.3(2)"a"(2007), and determine whether additional sanctions, including revocation, are warranted.

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Dated this 13th day of August, 2007.


Joyce Westphal, LISW, Chairperson
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Any appeal to the district court from a decision in a contested case shall be taken within 30 days from the date of issuance of the decision by the Board. 645 IAC 11.29.